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File No.: EXP202301293

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On January 18, 2023, the command of the GUARDIA CIVIL - PUESTO DE TARREGA (hereinafter, the complainant) submitted a Complaint Record dated January 11, 2023, regarding a possible breach of the provisions of personal data protection regulations by A.A.A. with NIF ***NIF.1 (hereinafter, the defendant), for the installation of a video surveillance system located at ***ADDRESS.1, with indications of a possible breach of the provisions of personal data protection regulations.

In the accompanying letter, it is stated as follows:

"[...]"

It is verified that said establishment has video surveillance cameras and does not display any sign indicating to users that they are being recorded and where they can exercise their rights of rectification, cancellation, etc. (...)"

SECOND: The defendant had been sent a letter indicating the obligations they had regarding data protection and video surveillance, having been notified on February 10, 2021, prior to the submission of a Report from the GUARDIA CIVIL - PUESTO DE TARREGA for the same facts.

THIRD: On March 24, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the defendant for the alleged infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

FOURTH: The aforementioned initiation agreement was notified in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the defendant submitted a written statement of allegations in which, in summary, they stated that:

"Since February 2021, a sign has been visibly displayed at the entrance of the establishment alerting users to the existence of video surveillance cameras, as well as the manner in which they can exercise their rights. These signs, for further clarification, are distributed inside the establishment. To demonstrate these allegations, photographs are attached to this document, which prove the existence of signs announcing the installation of video surveillance cameras and the manner in which rights can be exercised."

After examining the allegations of the defendant, this Spanish Agency for Data Protection does not consider it proven that the establishment has the signs required under current data protection regulations, informing of the existence of security cameras, as well as the details of the person responsible for the recording and where the corresponding rights can be exercised.

The photographs proving such existence were not attached to the allegations submitted.

For all the above reasons, the allegations presented were not accepted.

FIFTH: On April 13, 2023, the instructor of the procedure decided to carry out the following tests:

- Photographs proving the placement of the information device in the monitored areas, with the information provided therein (it must identify, at least, the existence of a treatment, the identity of the responsible party, and the possibility of exercising the rights provided in those provisions) and the location of the device in a sufficiently visible place, both in open and closed spaces.

SIXTH: On April 25, 2023, photographs were received in which it can be clearly seen that the establishment has a sign at its entrance alerting to the existence of video surveillance cameras and a sign indicating the details of the person responsible for the recording to exercise their corresponding rights.

SEVENTH: On December 12, 2023, a resolution proposal was made, proposing the dismissal of the complaint filed against A.A.A., with NIF ***NIF.1, for an infringement of Article 13 of the GDPR,

classified under Article 83.5 of the GDPR.

PROVEN FACTS

FIRST: It is evidenced in the file that the defendant has a video surveillance camera installed in their establishment that is capable of capturing images of their customers.

SECOND: It is evidenced in the file that at the entrance of the establishment there is a visibly displayed sign alerting users to the existence of video surveillance cameras, as well as the informative sign with the details of where they can exercise their rights before the responsible party.

LEGAL GROUNDS

I

Competence

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3/7

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

III

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of preserving the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained may not be used for a further purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties as provided for in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD, must be fulfilled, in the terms already indicated.

4.- Images of public roads may not be captured, since the processing of images in public places, unless there is government authorization, can only be carried out by the Security Forces and Bodies. In some cases, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security. That is to say, cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to

preserve the safety of persons and property, as well as their facilities.

The installed cameras may not capture images of third-party private spaces and/or public spaces without duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the purpose of intimidating them or affecting their private sphere without justified cause is not permitted. In no case will the use of surveillance practices beyond the environment subject to the installation be allowed, particularly not affecting surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

Images may not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the persons present in those spaces.

It is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

5.- The images may be retained for a maximum period of one month, except in those cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities.

In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

6.- The responsible party must maintain a record of activities of the processing carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The responsible party must conduct a risk analysis or, where applicable, a data protection impact assessment, to detect the risks arising from the implementation of the video surveillance system, evaluate them, and, where appropriate, adopt the appropriate security measures.

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5/7

8.- When a security breach occurs that affects the processing of camera data for security purposes, whenever there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours.

A security breach is understood as the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Agency for the Protection of Data provides access through its website

[<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section “Reports and resolutions” / “regulations”),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the “Guides and tools” section).

It is also of interest, in case of carrying out low-risk data processing, the free tool Facilita (in the “Guides and tools” section), which, through specific questions, allows assessing the situation of the data controller regarding the personal data processing they carry out, and if applicable, generate various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

IV

Administrative Infraction

Article 6.1 of the GDPR establishes the circumstances that allow the processing of personal data to be considered lawful.

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that

natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of individuals and property, as well as their facilities.

Article 12.1 of the GDPR indicates that anyone who carries out personal data processing, such as capturing images through a video surveillance system, must provide the interested parties with the information indicated in Articles 13 and 14 of the GDPR.

In order for the information duty provided in Article 12 of the GDPR to be fulfilled concisely and understandably for the affected party, the aforementioned Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

In this sense, the first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

The information in the second layer must be available in a place easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the remaining elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment.

This information duty will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether they are indoors or outdoors. If the monitored space has several entrances, this sign indicating the video-monitored area must be present at each of them.

This information must be provided in advance - considering Recital 39 of the GDPR. The objective is to make the context of the surveillance clear.

V

Conclusion

In this case, the Complaint Report is based on the lack of an informative sign indicating a video-monitored area in the establishment of the reported party, located at ***ADDRESS.1.

The facts presented and according to the evidence submitted are NOT considered to violate what is established in Article 13 of the GDPR.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for the Protection of Data RESOLVES:

FIRST: TO ORDER the ARCHIVING of this procedure, as no administrative infraction has been accredited within the framework of the current data protection regulations.

SECOND: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for the Protection of Data within one month.

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7/7

counting from the day following the notification of this resolution or directly administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the

LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that certifies the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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